

ELIZABETH II



1967 CHAPTER xv

An Act to confirm a Provisional Order under the Private Legislation Procedure (Scotland) Act 1936, relating to the Churches and Universities (Scotland) Widows' and Orphans' Fund (Amendment). [14th July 1967]

WHEREAS the Provisional Order set forth in the schedule hereunto annexed has been made by the Secretary of State under the provisions of the Private Legislation Procedure (Scotland) Act 1936, and it is requisite that the said 1936 c. 52. Order should be confirmed by Parliament:

Be it therefore enacted by the Queen's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows:—

1. The Provisional Order contained in the schedule hereunto annexed is hereby confirmed. Confirmation of Order in schedule.

2. This Act may be cited as the Churches and Universities (Scotland) Widows' and Orphans' Fund (Amendment) Order Confirmation Act 1967. Short title.

SCHEDULE

CHURCHES AND UNIVERSITIES (SCOTLAND) WIDOWS' AND ORPHANS' FUND (AMENDMENT)

Provisional Order to amend the provisions of the Churches and Universities (Scotland) Widows' and Orphans' Fund Order, 1954, in their application to certain professors and for other purposes.

Whereas by the Churches and Universities (Scotland) Widows' and Orphans' Fund Order, 1954 (hereinafter referred to as "the Order of 1954") the Trustees of the Churches and Universities (Scotland) Widows' and Orphans' Fund (hereinafter referred to as "the Trustees") were reincorporated and the Churches and Universities (Scotland) Widows' and Orphans' Fund as constituted by the Churches and Universities (Scotland) Widows' and Orphans' Fund Order, 1930 (which was repealed by the Order of 1954), was transferred to and vested in the Trustees:

And whereas provision was made by the Order of 1954 for the payment of annuities and benefits to the widows and children of ministers, professors and missionaries of the Church of Scotland and the Free Church of Scotland and of professors in the Universities of St. Andrews, Glasgow, Aberdeen and Edinburgh:

And whereas owing to changes, since the coming into operation of the Order of 1954, in the circumstances obtaining with regard to the remuneration and superannuation of professors in the said universities and in view, further, of the establishment in Scotland of additional universities (to which the provisions of the Order of 1954 do not apply) it is no longer necessary or expedient for provision to be made as heretofore for the payment of annuities and benefits to the widows and children of professors hereafter appointed to office in the said universities and it is expedient that the Order of 1954 should be amended accordingly:

And whereas in the case of professors now contributing to the said fund and whose widows and children would be entitled to the benefits thereof it is expedient that such professors should, if they so desire, be entitled to elect that the provisions of the Order of 1954 (with the benefits thereof) should cease to apply to them and that in such event the sums paid by them into the said fund should be repaid to them:

And whereas it is expedient that the Order of 1954 should be further amended as provided in this Order and that the other provisions contained in this Order should be enacted:

And whereas the purposes aforesaid cannot be effected without an Order confirmed by Parliament under the provisions of the Private Legislation Procedure (Scotland) Act, 1936: 1936 c. 52.

Now therefore in pursuance of the powers contained in the last-mentioned Act the Secretary of State orders as follows:—

1. This Order may be cited as the Churches and Universities Short title.
(Scotland) Widows' and Orphans' Fund (Amendment) Order 1967,
and this Order and the Churches and Universities (Scotland) Widows'
and Orphans' Fund Order, 1954, may be cited together as the Churches
and Universities (Scotland) Widows' and Orphans' Fund Orders, 1954
and 1967.

2. This Order shall come into operation on the date of the passing of Commence-
the Act confirming this Order, which date is in this Order referred to as ment of
"the commencement of this Order". Order.

3. (a) In this Order, unless there is something in the subject or Interpretation.
context repugnant to such construction—

words and expressions to which meanings are assigned by the
Order of 1954 shall have the same respective meanings; and

"church professor" means a minister of either of the churches
holding the office of professor in the faculty of divinity
in any of the universities or in any college in Scotland
connected with either of the churches at the commencement
of this Order or appointed to such office on or after the
commencement of this Order; and

"Order of 1954" means the Churches and Universities (Scotland)
Widows' and Orphans' Fund Order, 1954.

(b) The Order of 1954 shall be read and have effect as if, after the
definition of "office" in section 3 (Interpretation) thereof, there were
inserted the following definition:—

" 'the Order of 1967' means the Churches and Universities
(Scotland) Widows' and Orphans' Fund (Amendment)
Order 1967."

4. As from the commencement of this Order the provisions of the Provisions of
Order of 1954 shall no longer apply with respect to persons appointed Order of 1954
for the first time to office as professors in any of the universities not to apply
(other than persons appointed as church professors) and the sections to certain
of the Order of 1954 of which the numbers and marginal notes are professors.
set out in column 1 of the Schedule to this Order shall have effect
subject to the amendments specified in relation to those sections
respectively in column 2 of the said schedule.

5.—(1) As soon as may be practicable after the commencement of Certain
this Order (and in any event not later than 1st January, 1968), the professors to
Trustees shall, by notice sent by registered post or recorded delivery be entitled
service, intimate to every professor to whom this section applies that to elect to
discontinue
membership
of the Fund.

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he shall within six months from the receipt of such notice be entitled, on giving notice to the treasurer, to elect that the provisions of the Order of 1954 as amended by this Order shall cease to apply to him.

(2) (a) In any case where any professor to whom this section applies elects that the provisions of the Order of 1954 as amended by this Order shall cease to apply to him—

(i) his widow and children shall no longer be entitled to the benefits of the Fund;

(ii) he shall be entitled to the payment to him (or in the event of his death to his executors), not later than one month from the expiry of the said period of six months, of an amount equal to the sums paid by him to the Fund from the date of his admission, less an amount equal to any income tax in respect thereof for which the Fund may be accountable.

(b) Any dispute as to the amount payable as aforesaid shall be determined by an arbiter to be appointed by the President of the Institute of Chartered Accountants of Scotland.

(3) In the event of any professor failing to exercise the right of election conferred on him under this section within the said period the provisions of the Order of 1954 as amended by this Order shall continue to apply to him.

(4) Every notice sent by the Trustees as aforesaid shall set out the effect of the foregoing provisions of this section.

(5) This section shall apply to every professor (other than a church professor) holding office as such at the commencement of this Order and to every professor (other than a church professor) who ceased to hold office as such before the commencement of this Order unless any such professor (not being a contributor) has, before the commencement of this Order, elected pursuant to section 25 (Discontinuance of payments) of the Order of 1954 to discontinue to make to the Fund the payments specified in the Order of 1954.

Saving for rights of widows and children of deceased professors.

6. Nothing in this Order shall affect the rights of the widow or children of any professor to whom the immediately preceding section of this Order applies who died before the commencement of this Order or who shall die after the commencement of this Order unless such professor shall die during the period of six months referred to in the said section and shall, in any such case, before his death have elected, pursuant to the provisions of the preceding section, that the provisions of the Order of 1954 as amended by this Order shall cease to apply to him.

Constitution of Trustees may be altered by the Secretary of State.

7.—(1) In the event of the Trustees being of opinion that it is no longer expedient that four professors of any of the universities appointed by the University Court of the University of Edinburgh pursuant to section 8 (Rotation of trustees) of the Order of 1954 should be trustees in accordance with the provisions of section 4 (Reincorporation of trustees) of the Order of 1954 they may so represent to the Secretary of State and the Secretary of State may, on such representations being made and as may appear to him expedient, by order alter the constitution of the Trustees by reducing the number

of professors who are to be trustees or by providing that the membership of the Trustees shall no longer include professors appointed as aforesaid and any such order may make all such amendments and adaptations of the Order of 1954 and of this Order as seem to him necessary in consequence of such alteration of the constitution of the Trustees.

(2) The power to make orders conferred on the Secretary of State by this section shall be exercisable by statutory instrument and no such order shall be made unless a draft thereof has been laid before Parliament and has been approved by resolution of each House of Parliament.

(3) Any such order may be amended or revoked by a subsequent order made in like manner and subject to the like conditions.

8. Section 3 (Interpretation) of the Order of 1954 as amended by this Order shall be read and have effect as if in the definition of "charge" or "benefice" for the words from "and in the case of" to the end there were substituted the words "In the case of:—

Amendment of
section 3 of
Order of 1954.

- (a) ministers, 'charge' shall include an appointment held by a minister which has been or shall hereafter be declared by the general assembly of the Church of Scotland or of the Free Church of Scotland as the case may be to be the equivalent of a 'charge' for the purposes of this Order;
- (b) chaplains, 'charge' means a commission to Her Majesty's regular forces;
- (c) missionaries, 'charge' shall include an appointment held by a missionary in a definite area or country without parochial limitation."

9. Section 22 (Annual payments to Fund in respect of ministers, professors and missionaries) of the Order of 1954 as amended by this Order shall be read and have effect as if in subsection (1) (iv) at the end of paragraph (b) the word "and" were omitted and the following paragraph were added:—

Amendment of
section 22 of
Order of 1954.

"(bb) by every minister who shall hold an appointment which has been declared by the general assembly of either of the Churches to be the equivalent of a 'charge' unless or until he receives payment from the fund for the maintenance of the ministry or the sustentation fund as the case may be; and".

10. Section 23 (Provisions as to annual payments) of the Order of 1954 shall be read and have effect as if in subsection (2) for the words "and (b)" there were substituted the words "(b) and (bb)" and there were inserted after the word "ministry" the words "or the sustentation fund as the case may be".

Amendment of
section 23 of
Order of 1954.

11.—(1) Section 25 (Discontinuance of payments) of the Order of 1954 shall be read and have effect as if—

Amendment of
sections 25
and 29 of
Order of 1954.

(a) the following paragraph were substituted for paragraph (a) thereof:—

"(a) a minister professor or missionary who ceases to receive any payment (other than a retirement allowance or retirement pension) from any of the funds specified in the said section; or"

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and as if the words “ (other than as aforesaid) ” were inserted after the words “ before he ceased to receive any payment ” occurring therein; and

- (b) at the end of paragraph (c) the word “ or ” were added and after paragraph (c) the following paragraph were added:—

“ (d) a minister ceasing to hold an appointment declared by the general assembly of either of the Churches to be the equivalent of a ‘ charge ’ for the purposes of this Order.”

and as if after the words “ or before he ceased to hold an office ” there were inserted the words “ or before he ceased to hold an appointment ”.

(2) Section 29 (Entry money and marriage tax) of the Order of 1954 as amended by this Order shall be read and have effect as if the words “ (other than of a retirement allowance or retirement pension) ” were inserted after the words “ to be entitled to payment ” occurring in the proviso to sub-paragraph (ii) of paragraph (a) of subsection (2) thereof.

Further amendment of section 29 of Order of 1954.

12. Section 29 (Entry money and marriage tax) of the Order of 1954, as amended by this Order, shall be read and have effect as if—

- (a) in subsection (1) after paragraph (d) (ii) the following paragraph were added:—

“ (iiA) by every minister who after the commencement of this Order shall hold an appointment which has been declared by the general assembly of either of the Churches to be the equivalent of a ‘ charge ’ for the purposes of this Order and who is not receiving payment from the fund for the maintenance of the ministry or the sustentation fund as the case may be ”; and

- (b) the following subsection were added thereto:—

“ (4) The Trustees may, if they think fit, from time to time increase or reduce the sums payable under the foregoing provisions of this section in respect of entry money and marriage tax or either of them and may vary as they think fit the manner of and dates for payment thereof in the case of ministers, professors to whom the said section 29 as amended by the Order of 1967 applies and missionaries first admitted after a date to be determined by the Trustees when resolving on any such increase or reduction.”

Amendment of section 27 of Order of 1954.

13. Section 27 (Payments to Fund in respect of vacant charges) of the Order of 1954 shall be read and have effect as if the said section were subsection (1) thereof and as if—

- (a) at the end of the provisos to the said subsection the following proviso were added—

“ (iv) that payment as for a vacant charge shall not be made on the death, translation, resignation or deprivation of any minister holding an appointment which has been declared by the general assembly of the Church of Scotland

or of the Free Church of Scotland as the case may be to be the equivalent of a 'charge' for the purposes of this Order"; and

(b) the following subsection were inserted at the end thereof:—

"(2) For the purposes of this section 'annual sum' shall not in any case where the Trustees under the provisions of section 31 (Commutation of payments) of this Order have allowed or shall allow any minister, professor or missionary to commute the ordinary annual payments for which provision is made in this Order by the payment of increased annual payments to cease on his attaining a specified age, be construed as meaning such increased annual payments."

14. Section 37 (Payment of expenses and provisions for widows and children) of the Order of 1954 as amended by this Order shall be read and have effect as if in subsection (1) after paragraph (c) (iv) the following sub-paragraph were added:—

Amendment of section 37 of Order of 1954.

"(ivA) every minister hereafter holding an appointment which has been declared by the general assembly of either of the Churches to be the equivalent of a 'charge' for the purposes of this Order".

15. All costs, charges and expenses preliminary to and of and incidental to the preparing for, obtaining and confirming of this Order or otherwise in relation thereto shall be paid out of the Fund.

Costs of Order.

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SCHEDULE

AMENDMENTS OF ORDER OF 1954

(1) Section	(2) Amendments
3 Interpretation ...	The words "but shall not include any professor who has elected pursuant to section 5 (Certain professors to be entitled to elect to discontinue membership of the Fund) of the Order of 1967 that the provisions of this Order shall not apply to him;" shall be inserted at the end of the definition of "contributor".
6 Existing fund transferred to Trustees	The words "and of the Order of 1967" shall be inserted at the end of the section.
15 Returns to be made to treasurer	At the beginning "(1)" shall be inserted and at the end the following subsection shall be inserted:— “(2) Paragraph (a) and sub-paragraph (i) of paragraph (b) of the preceding subsection shall not apply to the appointment of any professor (other than a church professor) for the first time after the commencement of the Order of 1967 and the provisions of the said paragraph (a) relative to the translation, resignation, deprivation or death of professors and of sub-paragraph (ii) of the said paragraph (b) relative to the making of annual returns shall not apply to professors who have elected pursuant to section 5 (Certain professors to be entitled to elect to discontinue membership of the Fund) of the Order of 1967 that the provisions of this Order as amended by the Order of 1967 shall cease to apply to them.”
22 Annual payments to Fund in respect of ministers professors and missionaries	For paragraph (v) of subsection (1) there shall be substituted the following:— “(v) by every professor who at the commencement of this Order has been or is thereafter appointed to an office not being (a) a professor admitted to a share of the college funds, (b) a professor who has pursuant to section 5 (Certain professors to be entitled to elect to discontinue membership of the Fund) of the Order of 1967 elected that the provisions of this Order as amended by the Order of 1967 shall cease to apply to him or (c) a professor (other than a church professor) appointed for the first time after the commencement of the Order of 1967.”

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(1) Section	(2) Amendments
29 Entry money and marriage tax	After paragraph (e) of subsection (3) the following paragraph shall be inserted:— “(f) any professor (other than a church professor) appointed for the first time after the commencement of the Order of 1967 or any professor who has elected pursuant to section 5 (Certain professors to be entitled to elect to discontinue membership of the Fund) thereof that the provisions of this Order as amended by the Order of 1967 shall cease to apply to him.”
37 Payment of expenses and provisions for widows and children	(a) The words “except in any case where a contributor, being a professor, has elected pursuant to section 5 (Certain professors to be entitled to elect to discontinue membership of the Fund) of the Order of 1967 that the provisions of this Order as amended by the Order of 1967 shall cease to apply to him” shall be added at the end of paragraph (a) of subsection (1). (b) The words “or (not being a contributor) elected in pursuance of section 25 (Discontinuance of payments) of this Order to discontinue making to the Fund payment of the annual sum referred to in the said section or elected, pursuant to section 5 (Certain professors to be entitled to elect to discontinue membership of the Fund) of the Order of 1967, that the provisions of this Order as amended by the Order of 1967 shall cease to apply to him” shall be added at the end of the proviso to paragraph (c) of subsection (1).

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CHAPTER xv

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2. Short title.

SCHEDULE

CHURCHES AND UNIVERSITIES (SCOTLAND) WIDOWS' AND ORPHANS' FUND (AMENDMENT)

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